

assigns, and they may therefore sell in any case where there was a trust for sale or power of sale in the heirs and assigns of the last surviving trustee.]

22. An estate contracted to be sold will be included in a general devise.—A vendor, after the contract for sale, but before the completion of it, is a trustee for the purchaser *sub modo* only, and the estate will pass by a general devise in his will, where it would not have been included had the testator been a mere and express trustee (*b*).

[Personal representative can convey.—But by the Conveyancing and Law of Property Act, 1881, s. 4, it is enacted that where at the death of any person there is subsisting a contract *enforceable against his heir or devisee* for the sale of the fee simple or other freehold interest descendible to his heirs general in any land, his personal representatives shall, by virtue of the Act, have power to convey the land for all the estate and interest vested in him at his death in any manner proper for giving effect to the contract. But a conveyance made under this section is not to affect the beneficial rights of any person claiming under any testamentary disposition or as heir or next of kin of a testator or intestate, and the section applies only in cases of death after the 31st December, 1881” (*c*).]

*** 23. Trustee has the privileges and burdens of [*234] the legal estate.**—As the dry legal estate in the hands of the trustee is [subject to the statutory modifications above referred to] affected by the operation of law, and may be disposed of by the act of the trustee, precisely in the same manner as if it were vested in him beneficially, so it confers upon him all the *legal* privileges, and subjects him to all the *legal* burdens, that are incident to the usufructuary possession (*a*).

Trustee must bring actions, &c.—Thus the trustee can bring any action respecting the trust estate in a court of law, the *cestui que trust*, though the absolute owner in

(*b*) Wall v. Bright, 1 J. & W. 494;
but see now Lysaght v. Edwards, 2
Ch. D. 499.

[(*c*) Cf. Sect. 30 of the same Act
44 & 45 Vict. c. 41.]

(*a*) Burgess v. Wheate, 1 Eden, 251,
per Lord Northampton.